

ASCII MASTER FLOW – PANEL 1/12: 1. Anti-corruption legal evolution

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1. Anti-corruption legal evolution

[1] IPC bribery provisions

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v

[2] Prevention of Corruption Act 1947

|

v

[3] Criminal Law Amendment 1952

|

v

[4] Santhanam-linked 1964 reform

|

v

[5] PC Act 1988 consolidation

|

v

[6] Benami Act 1988 support layer

|

v

[7] Benami Amendment effective 2016

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v

[8] PC Amendment effective 26 July 2018

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v

VERDICT -> India's framework evolved through offence, procedure, asset and disclosure layers.

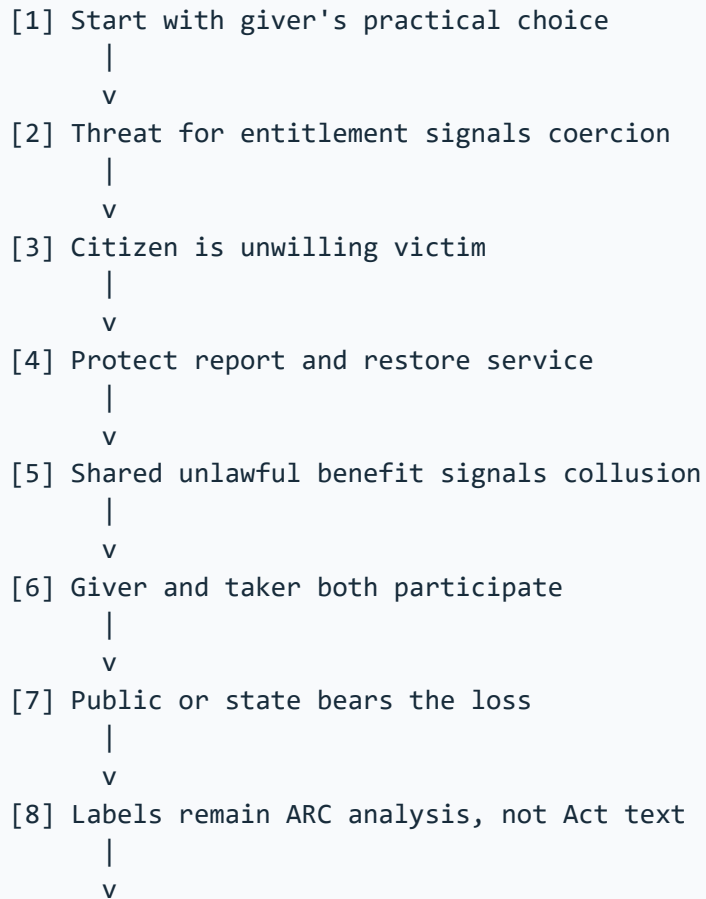
ANSWER USE -> Use to introduce chronology without treating every reform as linear expansion.

MUST REMEMBER: The Prevention of Corruption Act must be explained provision by provision:...

ASCII MASTER FLOW – PANEL 2/12: 2. ARC coercive-collusive branch

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2. ARC coercive-collusive branch



VERDICT -> Classification changes blame, evidence and remedy, but not statutory wording.

ANSWER USE -> Use before applying Sections 7 and 8.

CLOSE DISTINCTION: Investigation approval, prosecution sanction, adjudication and...

ASCII MASTER FLOW – PANEL 3/12: 3. Sections 7 and 8 transaction map

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3. Sections 7 and 8 transaction map

[1] Section 7 begins with public servant

|
v

[2] Obtain accept or attempt

|
v

[3] Undue advantage is central

|
v

[4] Improper or dishonest duty link

|
v

[5] Section 8 begins with giver

|
v

[6] Give or promise with corrupt intent

|
v

[7] Compulsion plus seven-day report

|
v

[8] Informed investigative assistance protected

|
v

VERDICT -> The law addresses both sides but preserves two narrowly defined giver protections.

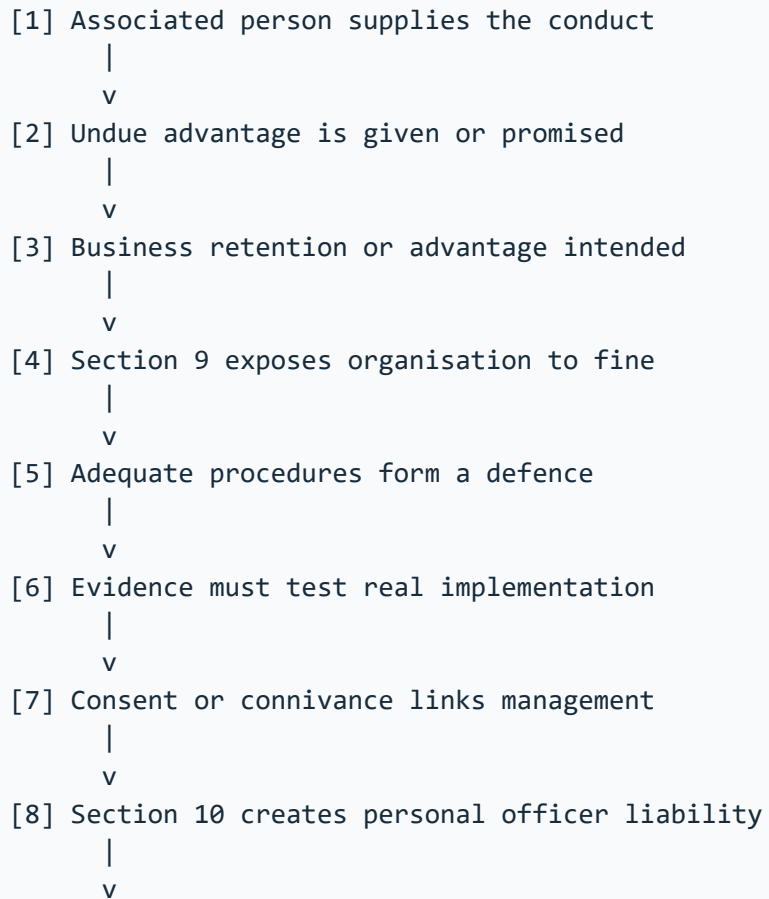
ANSWER USE -> Use for bribery fact patterns and close-option questions.

EVIDENCE / AUTHORITY / APPLICATION LIMIT: Use current statutory text and verified...

ASCII MASTER FLOW – PANEL 4/12: 4. Sections 9 and 10 corporate map

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4. Sections 9 and 10 corporate map



VERDICT -> Organisation liability and officer liability have different statutory connectors.

ANSWER USE -> Use to avoid automatic vicarious-liability claims.

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5. Section 13 narrowing

[1] Pre-2018 abuse-of-position head existed

|
v

[2] 2018 removed that broad route

|
v

[3] Current head one: entrusted property

|
v

[4] Dishonest or fraudulent diversion

|
v

[5] Allowing another to convert also covered

|
v

[6] Current head two: illicit enrichment

|
v

[7] Disproportionate assets require accounting

|
v

[8] Ethical abuse may survive outside Section 13

|
v

VERDICT -> Current criminal misconduct is narrower than general ethical misuse of office.

ANSWER USE -> Use for provision precision and balanced reform analysis.

ASCII MASTER FLOW – PANEL 6/12: 6. Section 17A investigation gate

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6. Section 17A investigation gate

[1] Identify PC Act allegation

|
v

[2] Identify serving or former public servant

|
v

[3] Link to official recommendation or decision

|
v

[4] Previous approval ordinarily required

|
v

[5] Appropriate authority must decide

|
v

[6] Three months is prescribed

|
v

[7] One recorded month may extend

|
v

[8] Spot acceptance arrest bypasses approval

|
v

VERDICT -> Section 17A is decision-linked and stage-specific, not rank-based immunity.

ANSWER USE -> Use for honest-decision protection versus delay debates.

ASCII MASTER FLOW – PANEL 7/12: 7. Section 19 cognizance gate

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7. Section 19 cognizance gate

[1] Investigation produces prosecutable material

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v

[2] Court cognizance is the statutory stage

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v

[3] Accused offence must be in listed set

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v

[4] Sections 7 10 11 13 15 are listed

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v

[5] Competent government or authority sanctions

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v

[6] Three-month endeavour disciplines decision

|

v

[7] Legal consultation permits one more month

|

v

[8] No invented automatic sanction on expiry

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v

VERDICT -> Investigation approval and prosecution sanction must never be collapsed.

ANSWER USE -> Use to compare Sections 17A and 19.

ASCII MASTER FLOW – PANEL 8/12: 8. Section 20 proof ladder

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8. Section 20 proof ladder

[1] Trial must concern Section 7 or 11

|

v

[2] Acceptance obtaining or attempt is proved

|

v

[3] Foundational proof precedes presumption

|

v

[4] Court presumes statutory corrupt purpose

|

v

[5] Section 11 consideration issue also covered

|

v

[6] Accused may prove the contrary

|

v

[7] Presumption is therefore rebuttable

|

v

[8] It is not guilt for every PC Act charge

|

v

VERDICT -> Burden shifting follows foundational proof and remains offence-specific.

ANSWER USE -> Use for Prelims traps and evidence analysis.

ASCII MASTER FLOW – PANEL 9/12: 9. Parallel accountability tracks

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9. Parallel accountability tracks

[1] Vigilance screening identifies angle

|
v

[2] Departmental process tests service breach

|
v

[3] Criminal process tests statutory offence

|
v

[4] Civil recovery restores proven loss

|
v

[5] Benami route targets concealed property

|
v

[6] Different standards of proof operate

|
v

[7] Acquittal does not mechanically erase misconduct

|
v

[8] Every adverse finding still requires due process

|
v

VERDICT -> One fact pattern may support several non-identical legal processes.

ANSWER USE -> Use to prevent audit, discipline and conviction from being conflated.

ASCII MASTER FLOW – PANEL 10/12: 10. Benami recovery and recall

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10. Benami recovery and recall

[1] Original 1988 confiscation lacked rules

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v

[2] ARC recorded eighteen-year inoperation

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v

[3] 2016 amendment rebuilt machinery

|

v

[4] New regime began 1 November 2016

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v

[5] 2022 judgment restricted retrospective reach

|

v

[6] 2024 Court found no live validity contest

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v

[7] Entire 2022 judgment was recalled

|

v

[8] Appeal restored and merits remain open

|

v

VERDICT -> Recall removes settled reliance on 2022 without deciding the opposite result.

ANSWER USE -> Use as the current legal-status anchor.

ASCII MASTER FLOW – PANEL 11/12: 11. Whistleblower protection gap

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11. Whistleblower protection gap

[1] Evidence-based disclosure begins process

|

v

[2] Identity confidentiality reduces retaliation

|

v

[3] PIDPI Resolution dates to 21 April 2004

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v

[4] 2014 Act received assent 9 May

|

v

[5] Section 1(3) required notification

|

v

[6] No commencement notification has issued

|

v

[7] 2015 Amendment Bill later lapsed

|

v

[8] Comprehensive statutory gap therefore persists

|

v

VERDICT -> Enactment and assent do not equal commencement or operation.

ANSWER USE -> Use for direct whistleblower and reform questions.

ASCII MASTER FLOW – PANEL 12/12: 12. Examiner-ready legal answer spine

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12. Examiner-ready legal answer spine

[1] Classify ethical transaction carefully

|
v

[2] Name exact section and legal actor

|
v

[3] State ingredients rather than conclusion

|
v

[4] Identify investigation or trial stage

|
v

[5] Add exception timeline or defence

|
v

[6] Separate statute from ARC proposal

|
v

[7] State current uncertainty honestly

|
v

[8] Conclude with balanced enforceable reform

|
v

VERDICT -> Provision plus stage plus qualification is the core of legal precision.

ANSWER USE -> Use to structure 10, 15 and 20-mark answers.